

Motherwell and Wishaw Burgh Order Confirmation Act, 1952

15 & 16 GEO. 6 & 1 ELIZ. 2 Ch. iii

ARRANGEMENT OF SECTIONS

Section.

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

MOTHERWELL AND WISHAW BURGH

PART I

PRELIMINARY

1. Short title.
2. Commencement of Order.
3. Interpretation.

PART II

EXTENSION OF BOUNDARIES

A. Alteration of areas

4. Commencement of Part II of Order.
5. Extension of boundaries.
6. Map of burgh.
7. Order not to affect election of members to serve in Parliament.
8. Added areas disjoined from county.
9. Abolition of special districts.
10. Added areas incorporated in existing wards.

*B. Administration and transfer of property
liabilities powers etc.*

Section.

11. Town Council to administer affairs of burgh.
12. Power of Town Council and magistrates extended to burgh.
13. Powers of other jurisdictions to cease.
14. Town planning.
15. Property of existing burgh vested in Town Council.
16. Property and liabilities in added areas vested in Town Council.
17. Assessment of burgh.
18. Recovery of assessments within added areas.
19. Roads etc. in added areas.
20. Saving rights in roads etc.

C. Supplementary provisions.

21. Books to be evidence.
22. Application of general and local Acts and byelaws.
23. Application of section 50 of Order of 1937.
24. Variation of procedure under Temperance (Scotland) Act 1913.
25. Adjustment of property and liabilities.
26. Application of House Letting and Rating Act.
27. For protection of county council.
28. Provisions as to subsisting licences.
29. Proceedings not to abate.
30. Repeal of laws etc. inconsistent with Order.
31. Saving of existing jurisdictions etc.
32. Saving for county councillors etc.

PART III

WATER SUPPLY

33. Commencement of Part III of Order.
34. Definitions for Part III.
35. Extension of water supply limits.
36. Transfer of water pipes in added areas.
37. Compensation to county council in respect of powers as to water supply.
38. For protection of British Transport Commission.
39. Incorporation of provisions of Fourth Schedule to Water (Scotland) Act 1946.
40. Repeals of Water Acts etc.
41. General saving from effect of repeal.

PART IV

PUBLIC HEALTH SANITARY AND CLEANSING

A. Infectious diseases and sanitary

Section.

- 42. As to cleansing of certain dwelling-houses.
- 43. Common stairs etc. to be limewashed etc. by owners.
- 44. Cleansing of verminous persons and their clothing.
- 45. Verminous articles to be purified.
- 46. Prohibition of sale of verminous furniture etc.
- 47. Byelaws in respect of fried fish shops.
- 48. Byelaws as to premises etc. of hairdressers barbers etc.

B. Human food

- 49. Byelaws with respect to handling wrapping etc. of food and sale of food in open air.
- 50. Penalty for want of cleanliness in food shops etc.
- 51. Provisions as to rooms where food intended for sale is prepared or stored etc.
- 52. Provisions as to vehicles used in connection with sale etc. of food.
- 53. Registration etc. of manufacturers of preserved food and their premises.
- 54. Medical practitioners to notify cases of food poisoning.
- 55. Provisions as to suspected food.
- 56. Prohibition of tuberculous persons from handling food.

C. Refuse

- 57. Collection and disposal of refuse.
- 58. Restrictions as to use of dustbins.
- 59. Penalty for allowing offensive matter or thing to run into street.

D. Expenditure under Part IV

- 60. Expenditure of Town Council under Part IV of Order.

PART V

VALUATION OF LANDS.

- 61. Supplementary valuation roll.

PART VI

MISCELLANEOUS

Section.

62. Borrowing powers.
63. Application of moneys borrowed.
64. Saving for emergency restrictions on borrowing.
65. Removal of limitation on public library rate.
66. For further protection of county council.
67. For protection of South West Scotland Electricity Board.
68. For protection of Scottish Gas Board.
69. As to expenditure for purposes of Order.
70. Confirming authority for byelaws.
71. Proceedings under Public Health Acts.
72. Saving for town and country planning.
73. Recovery of penalties.
74. Costs of Order.

SCHEDULES:

First Schedule—Boundaries of the added areas.

Second Schedule—Boundaries of the burgh.

Third Schedule.



CHAPTER iii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Motherwell and Wishaw Burgh. [22nd May 1952.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in Schedule.
2. This Act may be cited as the Motherwell and Wishaw Burgh Order Confirmation Act 1952. Short title.

SCHEDULE

MOTHERWELL AND WISHAW BURGH

Provisional Order to extend the boundaries of the burgh of Motherwell and Wishaw to confer further powers upon the provost magistrates and councillors of the said burgh with regard to their water undertaking to make provision with respect to the local government health administration and finance of the said burgh and for other purposes.

WHEREAS the burgh of Motherwell and Wishaw (hereinafter called "the burgh") in the county of Lanark is under the government for municipal purposes of the provost magistrates and councillors of the burgh of Motherwell and Wishaw (hereinafter called "the Town Council"):

And whereas the Town Council are the public health housing local planning and road authority within the burgh and are charged with the administration planning and management thereof:

And whereas the lands available for the erection of dwelling-houses within the burgh are limited and it is necessary to provide for the erection of houses on lands outwith the boundaries thereof for the proper accommodation of persons employed therein and additional lands will be required for such purpose:

And whereas the lands available within the burgh for the development for housing industrial functional and other purposes and for the provision of recreation areas and open spaces are inadequate and it is necessary to provide additional lands outwith the existing burgh for the proper development of the burgh for these purposes:

And whereas the boundaries of the existing burgh are in certain parts not coincident with marked geographical features:

And whereas the areas described in the First Schedule to this Order (hereinafter referred to as "the added areas") are situated in the county of Lanark and immediately adjoin the existing burgh and include lands suitable for housing and such development and lands which should be developed in conjunction with the burgh and there are also within the added areas certain developed areas adjoining the burgh which with the burgh form a common centre of population and in parts of which certain services are provided by the Town Council and in which the Town Council own or manage property for the purposes of their statutory functions and between which and the burgh there is community of interest:

And whereas the added areas together with the burgh would constitute an area suitable and convenient for proper planning and the boundaries thereof would for the most part be well defined and coincident with marked geographical features:

And whereas it is expedient and would be for public and local advantage that the boundaries of the existing burgh should be

extended and should include the added areas as provided by this Order and that all franchises rights privileges and immunities of and pertaining to the existing burgh and the powers and jurisdictions of the Town Council and all other powers and jurisdictions applicable within the existing burgh should as provided by this Order be extended to and be applicable within the burgh as extended by this Order and to the inhabitants thereof:

And whereas it is expedient that subject to the provisions of this Order and the Local Government (Scotland) Acts 1947 to 1951 the added areas should be separated and disjoined for the purposes of this Order from the county of Lanark and that all matters of administration and management and all jurisdictions powers functions and authorities within the added areas should devolve upon and be vested in the Town Council:

And whereas it is expedient that the added areas should be added to certain existing wards of the burgh as provided in this Order:

And whereas the Town Council are the local water authority within the burgh:

And whereas it is expedient to extend the limits within which the Town Council are authorised to supply water to include the added areas as hereinafter provided in this Order:

And whereas it is expedient that consequent upon the passing of the Water (Scotland) Acts 1946 and 1949 the provisions of the various Acts and Orders relating to the supply of water within the burgh should be modified or amended as provided in this Order:

And whereas it is expedient that further provision should be made with reference to cleansing and sanitary matters and the local government and health of the burgh:

And whereas it is expedient that further provision should be made with regard to the rates valuation and expenditure of the Town Council and that the limit on the amount of the rate which may be levied by the Town Council in order to meet expenditure incurred in respect of their public libraries should be removed:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

PART I

PRELIMINARY

1. This Order may be cited as the Motherwell and Wishaw Burgh Short title. Order 1952.

2. This Order except where otherwise expressly provided shall Commencement commence and have effect on and from the date of the passing of of Order. the Act confirming this Order which date is in this Order referred to as the commencement of this Order.

Interpretation.

3. In this Order (unless there be something in the subject or context inconsistent with or repugnant to such construction) the several words and expressions to which meanings are assigned by any public or local Act of Parliament or Order applicable within the burgh shall subject to the provisions of this Order have the same respective meanings. And in this Order unless the context otherwise requires the following expressions shall have the meanings assigned to them in this section (that is to say):—

“ Act of 1947 ” means the Local Government (Scotland) Act 1947 ;

“ added areas ” means the portions of the county by this Order incorporated with the existing burgh and described in the First Schedule to this Order and shown on the map to be deposited as hereinafter provided ;

“ burgh ” means the existing burgh as extended by this Order ;

“ county ” means the county of Lanark ;

“ county council ” means the county council of the county ;

“ the commission ” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ;

“ daily penalty ” means a penalty for every day on which any offence is continued after conviction therefor ;

“ district council ” means any district council of the county whose district or part of whose district is situated in the added areas ;

“ existing burgh ” means the burgh of Motherwell and Wishaw within the limits and boundaries existing immediately before the sixteenth day of May one thousand nine hundred and fifty-two ;

“ food ” means any article used as food or drink for human consumption other than drugs or water and includes—

(a) any substance which is intended for use in the composition or preparation of food ;

(b) any flavouring matter or condiment ; and

(c) any colouring matter intended for use in food :

Provided that notwithstanding anything in this definition the addition of any colouring or flavouring matter or condiment to the article used as food or drink shall be deemed to be the addition of a substance to food ;

“ Lands Valuation Acts ” means the Lands Valuation (Scotland) Act 1854 and any Acts amending or extending the same ;

“ magistrates ” means the magistrates of the existing burgh or of the burgh as the case may be and “ magistrate ” means any one of them ;

“ medical officer ” means the medical officer of health of the existing burgh or of the burgh as the case may be ;

“Order of 1920” means the Motherwell and Wishaw Burgh Order 1920 ;

“Order of 1937” means the Motherwell and Wishaw Burgh Order 1937 ;

“sanitary inspector” means the chief sanitary inspector of the existing burgh or of the burgh as the case may be ;

“sheriff” means the sheriff of the county and includes his substitutes ;

“town clerk” means the town clerk of the existing burgh or of the burgh as the case may be ;

“Town Council” means the provost magistrates and councillors of the existing burgh or of the burgh as the case may be ;

“wards” means wards of the burgh.

PART II

EXTENSION OF BOUNDARIES

A. Alteration of areas

4. This Part of this Order shall except as hereinafter provided be deemed to have come into operation on and from the sixteenth day of May one thousand nine hundred and fifty-two.

Commencement
of Part II of
Order.

5. The municipal and police boundaries of the existing burgh shall be and are hereby extended to and shall include and comprehend in addition to the area embraced in the existing burgh the added areas as described in the First Schedule to this Order and the burgh shall be comprised within the boundaries set forth and described in the Second Schedule to this Order.

Extension of
boundaries.

6.—(1) A map of the burgh of which eleven copies have been signed by Matthew George Fisher Counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1936 shall within one month after the passing of the Act confirming this Order be deposited as follows (that is to say) one copy with the town clerk one copy with the sheriff clerk of the county at his office in Hamilton one copy in the office of the Clerk of the Parliaments House of Lords one copy in the Private Bill Office of the House of Commons one copy at the Scottish Office London one copy with the Registrar General of Births Deaths and Marriages in Scotland one copy with the Minister of Agriculture and Fisheries one copy with the Commissioners of Inland Revenue one copy with the Commissioners of Customs and Excise one copy with the Minister of Transport and one copy with the Minister of Fuel and Power.

Map of burgh.

(2) If there be any discrepancy between the said map and the description in the Second Schedule to this Order the said map shall be deemed to be correct and shall prevail.

7. Nothing contained in this Order shall interfere with the election of members to serve in Parliament for the county and the county shall for parliamentary purposes remain in all respects as if the Act confirming this Order had not been passed.

Order not to
affect election
of members to
serve in
Parliament.

Added areas
disjoined from
county.

8. The added areas shall be and the same are hereby for the purposes of this Order and subject to the provisions thereof disjoined from the county.

Abolition of
special districts.

9.—(1) The special drainage scavenging and lighting districts so far as situated within the added areas shall be and are hereby abolished and to that extent all resolutions of the county council and all orders and decrees of the sheriff or of any other authority constituting or relating to the said special districts shall be of no force or effect so far as extending to or affecting any part of the burgh and the county council shall be relieved by the Town Council from all obligations in respect of the said special districts so far as the same are situated within the added areas.

(2) The Town Council shall not in respect of such special districts be under any obligations nor except by agreement with the local authority of such districts exercise any powers in such districts so far as they are beyond the burgh.

Added areas
incorporated in
existing wards.

10.—(1) The added areas shall be incorporated in the wards of the existing burgh as follows (that is to say):—

- (a) The portion of the added areas described in the First Schedule to this Order as area first shall be added to and form part of Ward No. 4 ;
- (b) The portion of the added areas described in the said First Schedule as area second shall be added to and form part of Ward No. 2 ;
- (c) The portion of the added areas described in the said First Schedule as area third shall be added to and form part of Ward No. 6.

(2) Nothing in this section shall affect the application to the burgh of the provisions of the Act of 1947 with regard to the alteration of the number of magistrates and councillors in burghs and to the number of councillors in each ward and to the division or re-division into wards.

B. Administration and transfer of property liabilities powers etc.

Town Council
to administer
affairs of burgh.

11. The Town Council shall in all respects stand in relation to the administration of the affairs and property of the burgh and of property under the care and management of the Town Council in the same position in which the Town Council of the existing burgh stood before the commencement of this Part of this Order and the Town Council shall have the same rights and powers of administration of the property and affairs of the burgh and of making all usual and necessary appointments as lawfully belonged to and were exercisable or exercised by the Town Council of the existing burgh in regard thereto notwithstanding anything in the set usage or customs of the existing burgh to the contrary.

12. The Town Council the magistrates and the dean of guild court shall have possess and may exercise over the burgh and the inhabitants thereof all the jurisdictions powers rights and authorities which they respectively possessed and exercised over the existing burgh and the inhabitants thereof whether at common law or by statute or otherwise including all powers of imposing levying and recovering rates and assessments dues and charges and all rights and privileges and immunities and obligations enjoyed and possessed by or incumbent on the inhabitants of the existing burgh shall subject to the provisions of this Order extend and apply to the inhabitants of the burgh.

Power of Town Council and magistrates extended to burgh.

13. Subject to the provisions of this Order all jurisdictions rights powers and duties which before the commencement of this Part of this Order were exercised or exerciseable by the county council or any other local or licensing or other authority within the added areas or any part thereof under any public general or local or private Act of Parliament or Order shall cease and determine.

Powers of other jurisdictions to cease.

14.—(1) As from the date of the coming into operation of Part II (Extension of boundaries) of this Order the Town Council shall be entitled at all reasonable times to inspect and take copies of all plans or documents relating to any land within the added areas which are in the possession or under the control of the county council for the purposes of or in connection with the Town and Country Planning (Scotland) Act 1947 and the county council shall supply to the Town Council such information and shall afford to them such assistance for the purposes of or in connection with the said Act as the Town Council may reasonably require.

Town planning.

(2) An office copy of every entry in the register relating to any land within the added areas kept by the county council under section 12 of the said Act of 1947 shall within one month after the date of the coming into operation of Part II (Extension of boundaries) of this Order be supplied to the town clerk by the clerk of the county council.

(3) Any application for planning permission or for any consent or approval under the said Act of 1947 or for a determination under section 15 of that Act made to the county council before the date of the coming into operation of Part II (Extension of boundaries) of this Order and not determined before that date shall so far as it relates to land within the added areas be treated as a like application made to the Town Council and shall be treated as having been so made at that date:

Provided that it shall not be necessary for the Town Council to consult with any authority or person with whom consultation has already taken place in relation to that application.

(4) Any order agreement permission approval determination consent notice proceeding or decision made taken or given by the county council as local planning authority under the said Act of 1947 or having effect as if so made taken or given and in force immediately before the date of the coming into operation of Part II (Extension of boundaries) of this Order shall so far as it relates to any land within the added areas have effect as if it had been made taken or given by the Town Council as such authority in respect of that land.

(5) Any direction approval consent or decision given by the Secretary of State or the Minister of Transport under or in pursuance of the said Act of 1947 or any enactment thereby repealed affecting the county council as local planning authority and in force immediately before the date of the coming into operation of Part II (Extension of boundaries) of this Order shall so far as it relates to any land within the added areas have effect as if the same had been given to the Town Council as local planning authority.

(6) The provisions of this section shall apply notwithstanding anything contained in the section of this Order to which the marginal note reads "Books to be evidence".

Property of
existing burgh
vested in Town
Council.

15. Subject to the provisions of this Order all property belonging to the Town Council at the commencement of this Part of this Order or to which the Town Council is entitled or which is held or administered by any person for or on behalf of the community of the existing burgh or for the public ends and purposes thereof shall be vested in and be held by the Town Council for the behoof and benefit of the burgh or as the case may be administered by such person for or on behalf of the community of the burgh or for the public ends and purposes thereof and all debts and obligations due by or exigible from the Town Council at the commencement of this Part of this Order shall be due by and exigible from the Town Council and all debts due to the Town Council by any person before the commencement of this Part of this Order may be demanded and recovered from such person and received and applied by the Town Council for the behoof of the burgh.

Property and
liabilities in
added areas
vested in Town
Council.

16.—(1) Subject to the provisions of this Order and except as otherwise expressly provided in this Order all property vested in held by or due or belonging to the county council the district council or other authorities in the added areas shall by virtue of this Order and without the necessity of recording in the register of sasines any conveyance notarial instrument notice of title or other deed or writing be transferred to vested in held by and be due and belong to the Town Council and shall form part of the property and assets of the Town Council for all the estate and interests therein of the county council the district council or other authorities and shall be received held and enjoyed by the Town Council accordingly.

(2) Subject to the provisions of this Order all the powers duties liabilities debts obligations contracts and agreements of the county council the district council or other authorities in relation to the added areas shall by virtue of this Order be transferred and attached to the Town Council and shall form part of the powers duties liabilities debts obligations contracts and agreements of the Town Council and be enjoyed performed paid and discharged by them.

(3) For the purpose of enabling the Town Council to complete a title if thought fit to any part of the lands buildings and other heritable property transferred to and vested in them by virtue of this Order by expediting a notarial instrument notice of title or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such lands buildings and other property in favour of the Town Council.

(4) The Town Council shall determine any question which arises as to the department of the Town Council to which any part of such property ought to belong and any question as to the fund of the Town Council out of which such liabilities and obligations are to be defrayed.

(5) This section shall not apply to the property and assets situated beyond the burgh which belong to the county council the district council or other authority.

17. Subject to the provisions of this Order every rate charge or assessment authorised to be requisitioned for levied and collected by the county council over the added areas or any part thereof which has not been actually imposed before the commencement of this Part of this Order shall thereupon cease and determine within the added areas and thereafter all assessments and rates leviable within the existing burgh by the Town Council shall be leviable on and within the burgh in the same way and manner as the same were leviable on and within the existing burgh. Assessment of burgh.

18. Every rate charge or assessment which has been actually imposed by the county council within the added areas or any part thereof before the commencement of this Part of this Order together with all arrears thereof shall continue to be due and payable to and may be collected and levied by the county council and by the same ways and means and under the same restrictions and regulations as if the Act confirming this Order had not been passed and shall be received and applied by the county council to and for the purposes for which the same were authorised to be levied. Recovery of assessments within added areas.

19. Subject to the provisions of this Order the roads streets highways lanes bridges foot-pavements and footpaths and the sewers and drains in the added areas so far as the same were vested in and managed maintained and repaired by the county council shall by virtue of this Order be transferred to and vested in and managed maintained and repaired by the Town Council along with and in the same way and manner and to the same extent as the roads streets highways lanes bridges foot-pavements and footpaths and the sewers and drains within the existing burgh and the county council shall be freed and relieved of the repair and maintenance of all such roads streets highways lanes bridges foot-pavements and footpaths and sewers and drains so far as within the added areas in all time coming. Roads etc. in added areas.

20. Nothing contained in this Order with respect to the vesting in the Town Council of roads streets highways lanes bridges foot-pavements footpaths sewers or drains within the added areas shall prevent any superiors owners or other persons by whom or by whose predecessors the same have been formed from recovering the cost or any proportion of the cost of forming the same from feuars or other persons under any agreements made between such persons respectively. Saving rights in roads etc.

C. Supplementary provisions

Books to be
evidence.

21.—(1) All books documents maps and plans directed or authorised to be kept by the county council or by any other authority in the added areas by any Act or otherwise shall so far as they relate solely to the added areas belong and be transferred to the Town Council and in so far as they would at the commencement of this Part of this Order be receivable in evidence shall be admitted as evidence in all courts and proceedings notwithstanding the cesser of the powers of the county council or other authorities.

(2) The foregoing provisions shall not apply to the books documents maps and plans kept by the county council and other authorities which relate to parts of the county other than the added areas but the Town Council and their officers shall be entitled to access to such books documents maps and plans in so far as may be necessary in relation to matters affecting the added areas and the respective clerks or other officers of the county council and other authorities shall afford all reasonable facilities for that purpose.

Application of
general and
local Acts and
byelaws.

22.—(1) Except so far as inconsistent with or varied by this Order the provisions of all public general and local and private Acts and Orders which applied to the existing burgh and all byelaws rules regulations and orders made thereunder shall extend and apply to the burgh in the same way and to the like extent as they applied to and had effect within the existing burgh:

Provided that the byelaws and regulations which are made to affect the added areas in regard to the construction occupation use cleansing or sanitation of or any other matter affecting any dwelling-house cottar houses byres dairy premises and sculleries milk-houses piggeries dungsteads and other buildings and erections therein or any renewals extensions or enlargements thereof shall not during the period of five years from the commencement of this Part of this Order be made in terms more onerous on owners or tenants than the byelaws and regulations in regard to such matters in force at the time in the district of the county in which the added areas may be before the commencement of this Part of this Order.

(2) Subject to the provisions of this Order all byelaws rules regulations and orders made under the provisions of any Acts or Orders relative to and in force in the added areas or any part thereof shall cease to have effect except in so far as the same may have been acted upon.

Application of
section 50 of
Order of 1937.

23. Notwithstanding anything contained in this Order in the application to the burgh of section 50 (Control of vacant building areas and derelict buildings) of the Order of 1937 the words "as defined in the Town and Country Planning (Scotland) Act 1947" shall be inserted in lieu of the words "as defined by the Advertisements Regulation Acts 1907 and 1925" in the proviso to subsection (1) of the said section and the said section shall be read and construed accordingly.

24. The Secretary of State may in order to meet the circumstances arising from the extension of the existing burgh under this Order by order vary the procedure prescribed by or in pursuance of the Temperance (Scotland) Act 1913 in connection with the taking of polls under the last-mentioned Act or otherwise including any dates fixed in connection with such procedure.

Variation of
procedure under
Temperance
(Scotland) Act.
1913.

25. The provisions of section 141 of the Act of 1947 shall apply to this Order as if the alteration of areas made thereby were an alteration of areas made under Part VI of that Act.

Adjustment of
property and
liabilities.

26. The House Letting and Rating (Scotland) Act 1911 and any Act amending or extending the said Act shall if in operation in the added areas or any part thereof apply to the added areas or such part thereof until the fifteenth day of May one thousand nine hundred and fifty-three as if the added areas had not been added to the burgh until that date. Provided that anything requiring to be done under the said Act to or by the county council in the added areas shall be done to or by the Town Council.

Application of
House Letting
and Rating
Act.

27. The following provisions (unless otherwise agreed in writing between the Town Council and the county council) shall apply and have effect (that is to say):—

For protection
of county
council.

(1) The Town Council shall on the passing of the Act confirming this Order repay to the county council the total amount of all sums advanced by the county council by way of loans on the security of subjects within the added areas under the Small Dwellings Acquisition Acts 1899 to 1923 the Housing &c. Act 1923 the Housing (Financial Provisions) Act 1924 the Housing (Scotland) Act 1925 and the Housing (Scotland) Act 1950 and any Acts amending the said Acts or any of them under deduction of any sums repaid to the county council before the passing of the Act confirming this Order and in consideration of such payment the county council shall assign to the Town Council all bonds and dispositions in security or other securities held by them for repayment of such advances with all rights competent to them thereunder:

(2) The Town Council shall on the passing of the Act confirming this Order repay to the county council the total amount of all sums advanced by the county council as subsidies to persons in respect of subjects in the added areas under the Housing &c. Act 1923 the Housing (Financial Provisions) Act 1924 the Housing (Scotland) Act 1925 and the Housing (Scotland) Act 1950 and any Acts amending the said Acts or any of them under deduction of any grants received by or due to the county council from the Secretary of State in respect thereof at or before the passing of the Act confirming this Order and in consideration of such payment the county council shall transfer to the Town Council all rights which they have to receive grants from the Secretary of State in respect of such subsidies:

- (3) The county council shall transfer to the Town Council all rights which they have to receive from the Secretary of State payments or grants in respect of any housing schemes carried out by the county council in the added areas under the Housing (Scotland) Acts 1890 to 1924 the Housing (Scotland) Act 1925 and the Housing (Scotland) Act 1950 and any Acts amending the said Acts or any of them :
- (4) If any difference arises between the Town Council and the county council under this section such difference shall failing agreement be determined by an arbiter to be named (failing agreement by the parties to name an arbiter) by the sheriff on the application of either of the parties.

Provisions as
to subsisting
licences.

28. All certificates of licence granted before the commencement of this Part of this Order by the competent licensing court for the added areas or any part thereof and then in force shall unless the same be revoked or previously expire continue until the twenty-eighth day of May one thousand nine hundred and fifty-three but all prosecutions for offences under the Licensing (Scotland) Acts 1903 to 1949 with reference to such certificates or for any breach thereof or of the byelaws or regulations made under the said Acts shall after the commencement of this Part of this Order be proceeded with in the same way as if such certificates had been originally granted within the burgh and all applications for renewal or transfer of such certificates shall after the commencement of this Part of this Order be disposed of by the licensing court of the burgh.

Proceedings
not to abate.

29. All legal or other proceedings begun before the transfer and relating to any property or liabilities transferred to the Town Council under this Part of this Order may be carried on with the substitution of the Town Council as party to the proceedings in lieu of the transferor authority from whom the property or liabilities was or were transferred and any such proceedings may be amended in such manner as may be necessary for that purpose.

Repeal of laws
etc. inconsistent
with Order.

30. All laws statutes jurisdictions powers privileges and usages now in force in relation to the existing burgh or within the added areas in so far as they are inconsistent or at variance with the provisions of this Part of this Order shall cease to apply to the burgh.

Saving of
existing
jurisdictions etc.

31. Nothing contained in this Part of this Order shall transfer or be deemed or construed to transfer to the Town Council—

- (1) Any main sewer in the added areas used for the purposes of areas other than or in addition to the added areas ;
- (2) Any property in the added areas belonging to the electricity or gas authorised undertakers in the said areas or any powers exercised or exercisable in the added areas by such authorised undertakers ;
- (3) (a) Any jurisdiction power or right hitherto exercised or exercisable by the county council within the added areas which was also exercised or exercisable within the existing burgh by the county council before the commencement of this Part of this Order ;

(b) Any liability debt duty or obligation incurred by or incumbent on the county council in connection with the exercise of any such jurisdiction power or right ; or

(c) Any property held or any officer or servant employed for the future exercise of any such jurisdiction power or right or for the discharge of any such liability debt duty or obligation.

32. Notwithstanding anything contained in the Act of 1947 or this Order any member of the county council or of a district council who at the coming into operation of this Part of this Order represented any electoral division situated partly within and partly without the added areas shall in ordinary course continue to be a member of the county council or of the district council as the case may be until the next election of county councillors or district councillors as the case may be after the commencement of this Part of this Order.

Saving for
county
councillors etc.

PART III

WATER SUPPLY

33. This Part of this Order shall be deemed to have come into operation on the sixteenth day of May one thousand nine hundred and fifty-two.

Commencement
of Part III of
Order.

34. In this Part of this Order unless the subject or context otherwise requires—

Definitions for
Part III.

“the Act of 1946” means the Water (Scotland) Act 1946 as amended by any subsequent enactment :

“the repealed Acts and sections” means those Acts and sections of the Water Acts and Orders as are set out in the Third Schedule to this Order ;

“Water Acts and Orders” means the Wishaw Water (Additional Supply) Act 1898 the Wishaw Water Act 1899 the Motherwell Water (Additional Supply) Act 1900 the Motherwell Burgh Extension and Sewage Purification Act 1908 the Motherwell Water and Sewage Purification Act 1914 the Motherwell Water (Supplementary Supply) Order 1918 the Motherwell and Wishaw Burgh Order 1920 the Motherwell and Wishaw Burgh Order 1937 and the Motherwell and Wishaw Burgh Water Order 1951 except such Acts and sections of the said Acts and Orders as are repealed as hereinafter provided :

“the water undertaking” means the water undertaking for the time being of the Town Council.

35.—(1) The limits of the Town Council for the compulsory supply of water shall be and are hereby extended to and shall include the added areas and the Water Acts and Orders shall be read and construed accordingly.

Extension of
water supply
limits.

(2) The county council shall not levy water rates assessments dues or charges for any period after the commencement of this Part of this Order within any part of the added areas nor except with the consent of the Town Council supply water in any part of the added

areas and the provisions of any Act or Order so far as the same authorise the supply of water or the levying of water rates assessments dues or charges by the county council for any such subsequent period within the added areas shall cease and determine.

Transfer of
water pipes in
added areas.

36. The water pipes and apparatus belonging to the county council situated within the added areas (other than through-going mains necessary for the supply of other parts of the water area of supply of the county council) are by virtue of this Part of this Order transferred to and vested in the Town Council and shall form part of their water undertaking and shall be held and used by the Town Council for the purposes of their water undertaking.

Compensation
to county
council in
respect of
powers as to
water supply.

37. The following provisions (unless otherwise agreed in writing between the Town Council and the county council) shall apply and have effect (that is to say):—

- (1) In respect of the cesser of the county council's powers as water authority in the added areas and the transfer to the Town Council of the water pipes and apparatus therein belonging to the county council provided in the two immediately preceding sections of this Order the Town Council shall pay to the county council such sum as may be mutually agreed upon or failing agreement as may be fixed by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary of State on the application of the Town Council or the county council and the compensation to be paid by the Town Council to the county council in respect of the said cesser of the county council's powers as water authority in the added areas shall be fixed on the basis of payment as for transfer of a revenue producing undertaking:
- (2) The sum payable by the Town Council to the county council in terms of this section shall be paid to the county council on or before the fifteenth day of May one thousand nine hundred and fifty-two together with interest thereon at the rate of three and one half per centum per annum from that date until the date of actual payment and shall be accepted by the county council as full compensation in respect of the matters dealt with in the two immediately preceding sections of this Order:
- (3) Any sum and the interest thereon (if any) paid by the Town Council to the county council under this section shall be applied by the county council with the sanction of the Secretary of State either in repayment of debt or for such other purposes as the county council may determine.

For protection
of British
Transport
Commission.

38.—(1) Where in consequence of this Part of this Order the county council cease to give to the commission any supply of water given by them within the added areas for railway purposes before the commencement of this Part of this Order the Town Council shall take all such steps as may be necessary themselves to continue such supply without interruption and shall supply the commission with such quantities of water as they may from time to time reasonably require for railway purposes.

(2) The commission shall pay for any such supply by the Town Council at the rate of five pence per thousand gallons during the year ending on the fifteenth day of May one thousand nine hundred and fifty three which rate shall increase by one penny per thousand gallons in each year thereafter:

Provided that the said rate shall not at any time exceed the rate for the time being charged by the Town Council for pure water supplied for other than domestic purposes.

(3) If any difference arises between the Town Council and the commission under this section such difference shall be determined by an arbiter to be agreed between the parties or in default of agreement to be appointed (on the application of either party) by the sheriff and the decision of the arbiter shall be binding.

39. The Fourth Schedule to the Act of 1946 (except Part III (Compensation water) and section 44) shall extend and apply to the Town Council in respect of the water undertaking to the same extent and effect as if the same had been incorporated with and formed part of the Water Acts and Orders.

Incorporation of provisions of Fourth Schedule to Water (Scotland) Act 1946.

40. Subject to the provisions of this Part of this Order the Acts and sections of the Acts and Orders which are set out in the Third Schedule to this Order are hereby repealed.

Repeals of Water Acts etc.

41. Subject to the provisions of this Part of this Order and notwithstanding the repeal of the repealed Acts and sections or anything contained in the section of this Order of which the marginal note is "Incorporation of provisions of Fourth Schedule to Water (Scotland) Act 1946"—

General saving from effect of repeal.

(a) All existing agreements made by the Town Council under any of the repealed sections shall be and continue to be valid and available for all purposes and for and against all parties as if the Act confirming this Order had not been passed ;

(b) All property vested in the Town Council at the commencement of this Part of this Order shall continue vested in the Town Council to the same effect and extent and all acts works matters and things done or commenced under the powers of the repealed sections or any of them which were at the commencement of this Part of this Order valid and available or in progress and all existing notices to treat agreements awards conveyances contracts titles covenants deeds instruments feus leases wayleaves obligations rights and remedies shall be and continue valid and available for all purposes and for and against all parties and may be continued enforced and completed as if the Act confirming this Order had not been passed ;

(c) All legal and other proceedings by with or against the Town Council by reason of any matter or thing done before the commencement of this Part of this Order in execution of or in relation to any of the repealed sections may be

continued commenced or prosecuted by with or against the Town Council as if the Act confirming this Order had not been passed ;

- (d) All existing byelaws rules regulations orders licences registrations consents sanctions and approvals and things done in execution of or in relation to or granted in pursuance of any of the repealed sections shall continue in force until repealed altered or revoked under the provisions of this Order or otherwise or until their expiration and may be enforced in like manner and with the same penalties as if made for like purposes respectively under the provisions of this Order ;
- (e) All assessments rates rents tolls charges and other sums at the commencement of this Part of this Order due to the Town Council under or in respect of any of the repealed sections may be collected and recovered by the Town Council as if the Act confirming this Order had not been passed ;
- (f) All books registers deeds plans documents and writings which under any of the repealed sections or otherwise would have been receivable in evidence shall be admitted in evidence in all courts and proceedings as if the Act confirming this Order had not been passed.

PART IV

PUBLIC HEALTH SANITARY AND CLEANSING

A. Infectious diseases and sanitary

As to cleansing
of certain
dwelling-
houses.

42. When the medical officer certifies in writing that any dwelling-house is in an insanitary condition and that the occupier thereof is unable through infirmity or mental incapacity to remedy such condition and that his health or the general public health is thereby endangered the sheriff may on the application of the Town Council (who shall give the occupier seven days' notice of their intention to make such application) make an order for the removal of such occupier to an institution or other dwelling maintained or approved by the Town Council for such period as the sheriff may by such order direct as being necessary to enable the Town Council to cleanse and disinfect the dwelling-house and the Town Council may remove such occupier and may carry out such cleansing and disinfection of the dwelling-house as may be necessary. Provided that upon the completion of such cleansing and disinfection of the dwelling-house the Town Council shall make provision for the return of such occupier to the dwelling-house.

Common stairs
etc. to be
limewashed etc.
by owners.

43.—(1) The owners of all common stairs or common passages and of water-closets drying rooms and wash-houses used in common and of all common ventilating shafts and lift shafts shall keep the same in repair and shall as often as may be required by the sanitary inspector and to his satisfaction repair and limewash paint or distemper the same and every part and pertinent thereof and all roof lights sky lights fan lights and windows belonging thereto in such

manner and within such time as may be required. Provided that such owner shall not be required under the powers of this section to limewash or distemper more often than once in every year or to paint more often than once in three years any such common stair common passage water-closet drying room wash-house used in common common ventilating shaft lift shaft or any part or pertinent thereof or any roof light fan light or window belonging thereto.

(2) Any such owner failing to comply with the provisions of this section or with any requirement of the sanitary inspector under this section shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding forty shillings and to a daily penalty not exceeding five shillings.

(3) Any person aggrieved by any requirement of the sanitary inspector under this section may appeal therefrom and section 339 of the Burgh Police (Scotland) Act 1892 shall extend and apply in respect of any such appeal.

44.—(1) Where it appears to the Town Council upon a report from the medical officer or from the sanitary inspector that any person or the clothing of any person is verminous then if that person consents to be removed to a cleansing station they may cause him to be removed to such a station and if he does not so consent they may apply to the sheriff and the sheriff if satisfied that it is necessary that such person or his clothing should be cleansed may make an order for his removal to such a station and for his detention therein for such period and subject to such conditions as may be specified in the order.

Cleansing of
verminous
persons and
their clothing.

(2) Where a person has been removed to a cleansing station in pursuance of the last preceding subsection the Town Council shall take such measures as may in their opinion be necessary to free him and his clothing from vermin.

(3) The cleansing of females under this section shall be carried out only by a registered medical practitioner or by a woman duly authorised by the medical officer.

(4) Any consent required to be given for the purposes of this section may in the case of a person under the age of sixteen years be given on his behalf by his parent or guardian.

(5) A charge shall not be made in respect of the cleansing of a person or his clothing or in respect of his removal to or maintenance in a cleansing station under this section.

45.—(1) Where it appears to the medical officer or to the sanitary inspector that—

Verminous
articles to be
purified.

(a) any dwelling-house or part thereof or any thing therein is in such a verminous condition that the health of any person is affected or endangered thereby ; or

(b) the cleansing or purifying of any such dwelling-house or part thereof or thing therein would tend to prevent or check infectious disease ;

he shall by notice in writing to the owner or occupier as the case may be of such dwelling-house or part thereof or the owner of such thing require such owner or occupier as the case may be to cleanse or purify such dwelling-house or part thereof or such thing.

(2) Any person to whom notice is so given who fails to comply therewith within the time therein specified shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding forty shillings and to a further penalty not exceeding ten shillings in respect of every day or part of a day during which such act or omission continues after the imposition of the first-mentioned penalty or in respect of every act or omission of a like nature which occurs within one month after such imposition and the sanitary inspector may if he thinks fit cause such article or thing to be cleansed or purified and may recover in a summary manner the expenses incurred by him in so doing from the person in default.

Prohibition of
sale of
verminous
furniture etc.

46.—(1) A dealer shall not sell or expose for sale any second-hand furniture mattresses bed linen or similar articles if the same are to his knowledge infested with bed bugs or other vermin or if by taking reasonable precautions he could have known the same to be so infested.

(2) A dealer who contravenes the provisions of this section shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding five pounds.

(3) (a) Any officer of or other person duly authorised by the Town Council in that behalf and producing his authority if and when required to do so may enter any premises in which second-hand furniture mattresses bed linen or similar articles are sold or exposed for sale for the purpose of examining whether there be any contravention of the provisions of this section.

(b) Any person who refuses to permit any officer or authorised representative of the Town Council to enter any premises or make any inspection which such officer or authorised representative is authorised under the provisions of this section to enter or make or obstructs any such officer or representative in the execution of his duty under such provisions shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding five pounds.

(4) In and for the purposes of this section "dealer" means any person who in the course of his business trades or deals in any of the articles referred to in this section.

Byelaws in
respect of fried
fish shops.

47.—(1) The provisions of section 32 of the Public Health (Scotland) Act 1897 so far as relating to byelaws as to offensive businesses shall within the burgh extend to the trade or business of a fish frier notwithstanding that such trade or business may not have been declared to be an offensive business in pursuance of the provisions of the Public Health Acts.

15 & 16 GEO. 6
& 1 ELIZ. 2

*Motherwell and Wishaw
Burgh Order Confirmation
Act, 1952*

Ch. iii

(2) Nothing in this section or in any byelaws made thereunder shall apply to any restaurant or cafe carried on in any premises occupied as part of a cinematograph theatre.

48.—(1) The Town Council may make byelaws for the purpose of securing that any premises used or to be used for the purpose of carrying on the business of a hairdresser barber manicurist or chiropodist are suitable and adequate for such purpose and of securing the cleanliness of such premises and the cleanliness and freedom from risk of infection of the instruments towels and materials used by hairdressers barbers manicurists and chiropodists in such premises or elsewhere where a charge is made for attendance or service. Byelaws as to premises etc. of hairdressers barbers etc.

(2) Any person using any such premises shall keep exhibited in a suitable place a copy of the byelaws made by the Town Council under this section.

(3) Byelaws made by the Town Council under this section shall not apply to a chiropodist being a member of the Society of Chiropodists Limited (By Guarantee) or to any premises used or to be used by him for the purposes of his business.

(4) Any person who acts or offends against any byelaw made under this section shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

B. Human food

49.—(1) The Town Council may make byelaws for securing the observance of sanitary and cleanly conditions and practices in connection with the handling wrapping and delivery of food sold or intended for sale for human consumption and in connection with the sale or exposure for sale in the open air of food intended for human consumption. Byelaws with respect to handling wrapping etc. of food and sale of food in open air.

(2) The medical officer the sanitary inspector or any other officer duly authorised by the Town Council in that behalf and showing his authority if required shall be entitled at all reasonable times to enter into and inspect any premises in which he has reasonable cause to suspect that there is any contravention of a byelaw made under this section.

(3) Any person refusing such entry or inspection or obstructing any such officer in the execution of his duty shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding forty shillings.

50.—(1) Any occupier of any shop or other premises used for the sale of food or for the preparation or storage of food intended for sale for human consumption which food by its nature is liable to contamination by contact with unclean conditions who does not keep such shop or other premises clean and in good condition shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings. Penalty for want of cleanliness in food shops etc.

(2) Any person who uses any cart basket or other article or thing for or in connection with the sale of any article of food intended for human consumption which by its nature is liable to contamination by contact with unclean conditions who does not keep the same clean and in good condition shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

Provisions as to
rooms where
food intended
for sale is
prepared or
stored etc.

51.—(1) Subject to the provisions of this section the following provisions shall have effect in relation to every room in which any food intended for human consumption (other than milk) is prepared for sale or sold or offered or exposed for sale or deposited for the purpose of sale or of preparation for sale (that is to say):—

- (a) Sanitary conveniences dustbins or ashpits shall not be within or communicate direct with the room or be so placed that offensive odours therefrom can penetrate into the room ;
- (b) A cistern for the supply of water to the room shall not be in direct communication with or discharge direct into a sanitary convenience and there shall not be within the room any outlet for the ventilation of a drain or except with the approval of the Town Council an inlet into any drain conveying sewage or foul water ;
- (c) The walls floor doors windows and ceiling of the room shall be kept in a proper state of repair ;
- (d) The walls ceiling and doors of the room shall be painted whitewashed cleansed or purified as often as may be necessary to keep them clean and the windows of the room shall be kept clean ;
- (e) The room shall not be used as a sleeping place and so far as may be necessary to prevent risk of infection or contamination of food in the room a sleeping place adjoining the room shall not communicate therewith except through the open air or through an intervening ventilated space ;
- (f) Except in the case of an artificially refrigerated room suitable and sufficient means of ventilation shall be provided and suitable and sufficient ventilation shall be maintained ;
- (g) Refuse or filth whether solid or liquid shall not be deposited or allowed to accumulate in the room except so far as may be necessary for the proper carrying on of the trade or business for which the room is used and the floor of the room shall be cleansed as often as may be necessary to keep it clean ;
- (h) Cleanliness shall be observed by persons employed in the room both in regard to the room and all articles apparatus and utensils therein and in regard to themselves and their clothing ; and
- (i) There shall be provided in or within reasonable distance of the room suitable washing basins and a sufficient supply of soap clean towels and clean water both hot and cold for the use of persons employed in the room :

Provided that paragraph (i) of this subsection shall not apply in relation to a room which is used for the sale or storage or for the sale and storage of food contained in containers of such materials and so closed as to exclude all risk of contamination but is not otherwise used for any purpose in connection with the preparation storage or sale of food.

(2) If in the case of a room to which the preceding subsection applies—

- (a) any of the requirements of that subsection are not complied with ; or
- (b) any person does or permits any act or thing in contravention of that subsection or fails to take all such steps as may be reasonably necessary to prevent risk of contamination of food in the room ; or
- (c) any person prevents the owner of the room from executing any work necessary to make the room comply with the said requirements ;

then in the first-mentioned case the occupier of the room and in the other cases mentioned the person in question whether he be the occupier or not shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

(3) If in the case of a room to which subsection (1) of this section applies any of the requirements specified in paragraphs (a) (b) (c) or (f) of that subsection are not complied with then in so far as that requirement is of a structural character the owner of the room—

- (a) if he let it for the purpose of being used for the preparation sale or storage of food ; or
- (b) if not having so let it he permits it to be so used after receiving notice from the Town Council shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to the same penalty as the occupier of the room but without prejudice to the liability of the occupier under the foregoing subsection.

(4) Where the owner of a room who did not let it for the purpose of being used for the preparation sale or storage of food executes any work necessary to make the room comply with the requirements of subsection (1) of this section he may recover the expenses incurred by him in so doing from the occupier of the room.

(5) In this section the expression “room” includes a shop or cellar or any other part of a building and a shed store or out-building or any part thereof and the provisions of this section except paragraphs (e) and (f) of subsection (1) thereof shall so far as applicable apply in relation to a court (that is to say any recess yard or area or enclosed space contiguous or adjacent to any building) as they apply in relation to a room.

Provisions as to
vehicles used in
connection with
sale etc. of food.

52.—(1) The following provisions shall apply and have effect in relation to every vehicle in which any food intended for human consumption (other than milk) is prepared for sale or sold or offered or exposed for sale or deposited or conveyed for the purpose of sale or of preparation for sale (that is to say):—

- (a) Every part of such vehicle adjacent to or liable to come in contact with any food as aforesaid shall be kept in a proper state of repair ;
- (b) The inside of the floor sides ends roof and doors of such vehicle shall be painted washed cleansed or purified as often as may be necessary to keep them clean ;
- (c) Sufficient means of ventilation shall be provided and suitable and sufficient ventilation shall be maintained in such vehicle ;
- (d) Refuse or filth either liquid or solid shall not be deposited or allowed to accumulate in such vehicle except so far as may be reasonably necessary for the proper carrying on of the trade or business for which the vehicle is used ;
- (e) Due cleanliness shall be observed by persons employed in or about such vehicle and in the carrying of food to or from the vehicle.

(2) If in the case of a vehicle to which the preceding subsection applies—

- (a) any of the requirements of that subsection are not complied with ; or
- (b) any person does or permits any act or thing in contravention of that subsection or fails to take such steps as may be reasonably necessary to prevent risk of contamination of food in the vehicle ;

the owner of or any person in charge of such vehicle shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Registration etc.
of manufacturers
of preserved
food and their
premises.

53.—(1) (a) A person shall not carry on the business of a manufacturer of preserved food unless he is registered by the Town Council.

(b) Premises shall not be used for the manufacture of preserved food intended for sale unless such premises are registered by the Town Council.

(c) Any person who acts in contravention of the provisions of this subsection shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The Town Council may refuse to register any such person or premises or (after giving one month's notice in writing to the person registered or in whose name any such premises are registered) may revoke the registration of any such person or premises—

- (i) as regards any person on the ground that the public health is or is likely to be endangered by any act or default of

the person who is registered or who seeks to be registered as aforesaid in relation to the quality storage or distribution of the preserved food ; and

- (ii) as regards any premises on the ground that the premises are not suitable to be used for the purposes aforesaid :

Provided that before refusing or revoking such registration the Town Council shall serve upon the applicant for registration or the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Town Council should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises.

(b) If the Town Council refuse to register or revoke the registration of any such person or premises they shall deliver to the person applying for such registration or the person registered or in whose name the premises are registered a statement in writing of the ground or grounds on which such refusal or revocation is based. Notice of the right to appeal next hereinafter mentioned shall be endorsed on every such statement.

(c) Any person aggrieved by any such refusal or revocation may appeal to the sheriff provided that such appeal be made within fourteen days from the date of the delivery of the statement referred to in the immediately preceding paragraph of this subsection.

(d) Any person so appealing shall give written notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal.

(3) In this section the expression " preserved food " means sausages or potted pressed pickled or preserved meat fish or other food and the preparation of meat or fish by any process of cooking shall be deemed to be the preservation thereof.

(4) The Town Council may make a charge not exceeding five shillings in respect of the registration of any person or premises under this section.

(5) The provisions of this section shall not in any way affect the operation of the Factories Act 1937.

(6) The provisions of this section shall not apply to any premises used as a club hotel restaurant railway refreshment room nor to any cafe carried on in any premises occupied as a cinematograph theatre.

54.—(1) Every registered medical practitioner attending on a person in the burgh who is or is suspected to be suffering from food poisoning shall forthwith on becoming aware that such person is or is suspected to be so suffering send to the medical officer a notification of the case stating the name of such person and the place at which such person is.

Medical practitioners to notify cases of food poisoning.

(2) The Town Council shall pay to every registered medical practitioner for each notification duly sent by him in accordance with this section a fee of two shillings and sixpence if the case occurs in his practice as a private medical practitioner and of one shilling if the case occurs in his practice as medical officer of any public body or institution.

Provisions as to
suspected food.

55.—(1) If the medical officer the sanitary inspector or any other officer duly authorised by the Town Council in that behalf has reasonable ground for suspecting that any food of which he has procured a sample is likely to cause food poisoning he may give notice to the person in charge of the food that until his investigations are completed the food or any specified portion thereof is not to be removed or is not to be removed except to some place specified in the notice.

(2) If as a result of his investigations the medical officer the sanitary inspector or such other officer is satisfied that the food in question may safely be used for human consumption he shall forthwith withdraw his notice but if he is satisfied that such food or any portion thereof is likely to cause food poisoning he may seize and remove it in order to have it dealt with by a magistrate and shall inform the person in whose possession it was found of his intention to have it dealt with by a magistrate and such person shall be entitled to appear before the magistrate and to be heard and call witnesses.

(3) If it appears to the magistrate that any food brought before him whether seized under the provisions of this section or not is unfit for human consumption he shall condemn it and order it to be destroyed or to be so disposed of as to prevent it from being used for human consumption.

(4) A person who removes any food in contravention of the requirements of a notice given under subsection (1) of this section shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding five pounds.

(5) If a notice given under subsection (1) of this section is withdrawn by the medical officer the sanitary inspector or such other officer or if the magistrate before whom any food is brought under this section refuses to condemn it the Town Council shall compensate the owner of the food to which the notice related for any depreciation in its value resulting from the action taken by the medical officer sanitary inspector or such other officer.

Prohibition of
tuberculous
persons from
handling food.

56.—(1) If the medical officer certifies—

- (a) that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state; and
- (b) that he is occupied in the burgh in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household; and
- (c) that his continuance in that occupation would in the judgment of the medical officer be a danger to the health of other persons;

the medical officer or any other person authorised in that behalf by the Town Council may request him in writing to discontinue his occupation as aforesaid.

(2) If any person requested as aforesaid complies with the request the Town Council may if they think fit compensate him for any loss occasioned by his compliance with the request.

(3) If any person requested as aforesaid fails to comply with the request a court of summary jurisdiction may on the application of the Town Council order him to comply with the request and may by any such order if it thinks fit direct that such compensation (if any) as it thinks equitable shall be paid to him by the Town Council.

(4) If any person fails to comply with any such order he shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

C. Refuse

57. Section 43 of the Motherwell and Wishaw Burgh Order Confirmation Act 1937 shall in its application to the burgh be extended to include the following provisions:—

Collection and disposal of refuse.

Any person who without authority—

(a) searches amongst refuse in any dustbin or food waste bin or other receptacle or in any tip coup or land for or in connection with the disposal or treatment of refuse for materials for salvage or otherwise ; or

(b) collects or carries away any articles or things from such refuse ; or

(c) interferes with such refuse in any way ;

shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding twenty shillings.

58.—(1) A person shall not deposit any waste water or other liquid or faecal matter in any dustbin so as to mix it with domestic refuse intended for removal by or on behalf of the Town Council.

Restrictions as to use of dustbins.

(2) Any person contravening the provisions of this section shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding twenty shillings.

59. Any person who causes or permits any foul water oil dirt filth or other offensive matter or thing to run into or be discharged upon any street shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding forty shillings.

Penalty for allowing offensive matter or thing to run into street.

D. Expenditure under Part IV

60. All expenses incurred by the Town Council in carrying out the powers conferred on them by this Part of this Order shall be paid out of the burgh fund in the same manner as expenditure incurred by the Town Council under the Public Health Acts.

Expenditure of Town Council under Part IV of Order.

PART V

VALUATION OF LANDS

61.—(1) The Town Council acting under the Lands Valuation Acts in addition to the ordinary valuation roll for the burgh made up under the said Acts in each year shall between the first day of January and the first day of March in each year cause to be

Supplementary valuation roll.

made up by the assessor for the burgh under the said Acts a supplementary valuation roll showing for the year or the portion of the year to Whitsunday then next in the form prescribed for the said ordinary valuation roll the rent or value of all lands and heritages within the burgh—

- (a) which were in existence before the term of Whitsunday immediately preceding and which owing to error were not included in or were omitted from the said ordinary valuation roll last made up ;
- (b) which have come into existence after the term of Whitsunday immediately preceding and which were not included in the said ordinary valuation roll ;
- (c) which were included but entered as unoccupied or empty in the said ordinary valuation roll and which have become occupied after the term of Whitsunday immediately preceding.

(2) The provisions of the Lands Valuation Acts including the provisions as to notices appeals and courts for hearing the same shall *mutatis mutandis* be applicable to such supplementary valuation roll as if it were therein referred to.

(3) For the purposes of hearing and disposing of appeals against valuations entered in the supplementary valuation roll the burgh valuation courts of appeal as established under the Lands Valuation Acts shall be held between the fifteenth and the thirty-first days of March in each year.

(4) The Town Council imposing any assessment upon the basis of the said ordinary valuation roll may impose in respect of all lands and heritages entered in such supplementary valuation roll supplementary assessments which shall be made so far as possible in the same manner under the same conditions and with the same powers of recovery as are applicable to the corresponding assessments imposed upon the basis of the said ordinary valuation roll Provided that such lands and heritages shall not be liable to be assessed more than once in any one year for the same rate or assessment in respect of the same rent or value.

(5) All expenses incurred by the Town Council in giving effect to the provisions of this section shall be defrayed in the same manner as the costs and expenses of and in connection with the said ordinary valuation roll.

(6) Assessments imposed in respect of lands and heritages entered in the supplementary valuation roll shall be due and payable on demand.

PART VI

MISCELLANEOUS

Borrowing
powers.

62. The Town Council in addition to any other powers of borrowing which they now have may from time to time borrow at interest for the purposes of—

- (a) the several purposes of this Order ;

(b) the payment of the costs charges and expenses of this Order ;

such sums of money as may be necessary Provided that money so borrowed for purpose (a) shall be repaid within thirty years from the date or dates of borrowing and that money so borrowed for purpose (b) shall be repaid within five years from the commencement of this Order.

63. All moneys borrowed by the Town Council under the powers of this Order shall be applied only to the purposes for which such moneys are authorised to be borrowed and to which capital is properly applicable.

Application of
moneys
borrowed.

64. Nothing in this Order shall authorise the exercise of any power of borrowing money or the making of any issue of capital otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946 or of section 259 of the Act of 1947 as amended by section 4 (1) of the Local Government (Scotland) Act 1951.

Saving for
emergency
restrictions on
borrowing.

65. The limitation on the amount of the library rate authorised by the Public Libraries Consolidation (Scotland) Act 1887 imposed by section 191 of the Act of 1947 is hereby removed so far as applicable to the burgh and the Public Libraries (Scotland) Acts 1887 to 1920 and the Act of 1947 shall in their application to the Town Council and the burgh be read and construed accordingly.

Removal of
limitation on
public library
rate.

66. Sections 52 (Powers to lay water mains through burgh) 53 (Saving of agreements between county authorities and Town Council of Motherwell and further provision as to drainage from county areas) and 54 (Provision as to lighting water supply etc. in county roads) of the Order of 1920 shall apply and have effect as if the same had with the necessary modifications been re-enacted in this Order.

For further
protection of
county council.

Provided that—

(a) nothing contained in the said section 54 of the Order of 1920 shall authorise the county council themselves to lay pipes (other than service pipes for street lighting) for the supply of gas or to supply gas for the purpose of lighting any road or street or otherwise or to connect any gas service pipes to or otherwise interfere with any mains or pipes of the Scottish Gas Board ;

(b) subsection (2) of the said section 54 as applied by this section shall have effect as if the word "gas" occurring therein were omitted therefrom.

67. The following provisions for the protection of the South West Scotland Electricity Board (hereinafter in this section called "the board") shall unless otherwise agreed between the board and the Town Council apply and have effect (that is to say) :—

For protection
of South
West Scotland
Electricity
Board.

Notwithstanding anything contained in this Order the board shall subject to the provisions of the Electricity Act 1947 be

entitled to exercise all the powers of and adopted by the said Act in their area of supply in the same way as if this Order had not been passed notwithstanding that the said area or some part thereof is comprised within the burgh.

For protection
of the Scottish
Gas Board.

68. The following provisions for the protection of the Scottish Gas Board (hereinafter in this section called "the gas board") shall unless otherwise agreed between the gas board and the Town Council apply and have effect (that is to say):—

Notwithstanding anything contained in this Order the gas board shall subject to the provisions of the Gas Act 1948 be entitled to exercise all the powers vested in them under the said Act in their area of supply in the same way as if the Act confirming this Order had not been passed notwithstanding that the burgh is within the said area.

As to
expenditure for
purposes of
Order.

69. All expenditure incurred by the Town Council in the exercise of the powers conferred and the performance of the duties imposed on them by this Order or the byelaws made thereunder and not otherwise recovered as provided in this Order shall be paid or satisfied out of the burgh fund and shall be deemed to be expenditure payable out of the burgh rate under the appropriate head.

Confirming
authority for
byelaws.

70. Where byelaws are made under the powers of this Order the confirming authority for the purpose of section 301 of the Act of 1947 shall be the Secretary of State.

Proceedings
under Public
Health Acts.

71. Nothing contained in this Order shall exempt any person guilty of any offence under the provisions of the Public Health Acts so far as relating to nuisances or any other Act in force for the time being for the removal or prevention of nuisances from prosecution or action in respect thereof in the same manner as if this Order had not been passed and nothing contained in this Order and proceedings taken under the same shall not in any way prevent any proceedings authorised by and taken or to be taken under the said Acts or any of them.

Saving for town
and country
planning.

72. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning (Scotland) Act 1947 for the purposes of subsection (4) of section 11 and subsection (1) of section 112 of that Act.

Recovery of
penalties.

73. Any penalty under this Order or under any byelaws or regulations made under this Order unless otherwise specially provided for may be recovered in manner provided by the Summary Jurisdiction (Scotland) Acts.

Costs of Order.

74. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Town Council out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of moneys to be borrowed by them under this Order for that purpose.

FIRST SCHEDULE

BOUNDARIES OF THE ADDED AREAS

AREA FIRST

AREA WITHIN THE PARISH OF DALZIEL AND THE COUNTY OF LANARK

Commencing at a point where the present burgh boundary as defined in the Motherwell and Wishaw Burgh Order Confirmation Act 1937 (hereinafter referred to as "the present burgh boundary") meets the centre line of the South Calder Water at the north face of the viaduct carrying the railway (Motherwell to Glasgow) over the South Calder Water in the area known as Forgewood thence in a direction generally northerly north-easterly easterly south-easterly and easterly following the centre line of the South Calder Water until it meets the present burgh boundary at the east face of the viaduct located near Jerviston Camp and carrying the railway (Motherwell to Perth) across the South Calder Water thence along the present burgh boundary in a direction generally south-westerly north-westerly south-westerly and southerly to the point of commencement.

Note.—For the foregoing description reference was made to 1/2500 ordnance survey maps Lanarkshire sheets XII.9 and XII.5 (revision of 1939).

AREA SECOND

AREA WITHIN THE PARISH OF DALZIEL AND THE COUNTY OF LANARK

Commencing at a point where the present burgh boundary meets the centre of the river Clyde at the south-east face of the viaduct carrying the Lesmahagow branch railway over the river Clyde thence in a direction generally westerly and northerly following the centre line of the river Clyde until it meets the present burgh boundary at the northern face of Hamilton Bridge thence along the present burgh boundary in a direction generally easterly north-easterly south-easterly and south-westerly to the point of commencement.

Note.—For the foregoing description reference was made to 1/2500 ordnance survey maps Lanarkshire sheets XVIII.1 and XII.13 (revision of 1939).

AREA THIRD

AREA WITHIN THE PARISHES OF BOTHWELL DALZIEL AND CAMBUSNETHAN AND THE COUNTY OF LANARK

Commencing at a point on the present burgh boundary at the northern side of the Motherwell—Stirling road which point is 57 yards north-east of the said boundary where it crosses the said Motherwell—Stirling road in the area known as Cleekhimin thence in a north-easterly direction along the northern side of the Motherwell—Stirling road for a distance of 96 yards thence south-east in

1st SCH.
—cont.

a straight line across the Motherwell—Stirling road to the westmost point of inclosure 227 thence in a south-easterly direction following the southern boundary of inclosures 227 and 203 to the south-east corner of inclosure 203 thence easterly in a straight line to the south-west corner of inclosure 206a thence in a northerly direction following the western boundary of inclosure 206a to the north-west corner thereof thence easterly in a straight line to the south-west corner of inclosure 211 thence easterly following the southern boundary of inclosure 211 to the south-east corner thereof at a point on the centre line of the stream located there thence in a direction generally southerly following the centre line of the stream through inclosures 217 130 217 and 126 and continuing to the centre line of the South Calder Water thence in a direction generally easterly south-easterly and north-easterly following the centre line of the South Calder Water to a point on the eastmost face of the bridge known as Coltness Bridge carrying the Coltness Road over the South Calder Water thence along the east face of the said Coltness Bridge to the north-west corner of inclosure 2270a thence in a south-easterly direction following the western boundary of inclosures 2270a 2270 and 2268 to a point on the northern boundary of the drive through North Branchal Wood thence south-easterly in a straight line to the north-west corner of inclosure 2267 thence southerly following the western boundary of inclosure 2267 for a distance of 67 yards thence in a straight line to the south-western boundary of the said inclosure thence south-easterly and easterly following the south-western and southern boundaries of inclosure 2267 to the westmost corner of inclosure 2266 thence easterly following the southern boundary of inclosure 2266 to the south-east corner thereof thence south-westerly following the western boundary of inclosure 2265 to the westmost point of inclosure 2265 thence south-westerly following the western boundary of inclosure 2263a to the south-west corner thereof thence easterly following the northern boundary of inclosure 2263 to the north-east corner thereof thence southerly following the eastern boundary of inclosure 2263 to the south-east corner thereof thence southerly following the eastern boundary of inclosure 2262a to the point where it meets the northern boundary of inclosure 2262 thence easterly south-easterly and south-westerly following the eastern boundary of inclosure 2262 to the south-east corner thereof thence in a straight line to the north-west corner of inclosure 2259 thence south-westerly westerly and south-westerly following the western boundaries of inclosures 2259 and 2257 to the south-west corner of inclosure 2257 and continuing in a straight line until it meets the present burgh boundary at a point on the northern boundary of inclosure 2255a thence along the present burgh boundary in a direction generally westerly north-westerly north-easterly north-westerly and north-easterly to the point of commencement.

Note.—The numbers of the inclosures referred to are those given on the 1/2500 ordnance survey maps Lanarkshire sheets XII.10 XII.11 XII.14 and XII.15 (revision of 1939) and XII.16 (revision of 1940).

SECOND SCHEDULE

BOUNDARIES OF THE BURGH

Commencing at a point on the centre of the river Clyde where the centre of the South Calder Water joins the river Clyde thence in a direction generally north-easterly easterly north-easterly north-westerly northerly easterly north-easterly easterly and south-easterly following the centre line of the South Calder Water to the south face of Jerviston Camp Bridge carrying Glen Street over the South Calder Water thence in a direction generally north-easterly following the south side of the public road in continuation of Glen Street and continuing in an easterly direction following the northern boundary of inclosure 541 to the north-east corner of inclosure 541 thence in a straight line to a point on the western boundary of inclosure 542 which point is 54 yards north of the south-west corner of inclosure 542 thence northerly north-easterly and south-easterly following the western north-western and northern boundaries of inclosure 542 to the eastern boundary of inclosure 542 thence northwards in prolongation of the eastern boundary of inclosure 542 to the north-east side of the roadway leading to Annandale Place thence northerly and north-easterly following the north-western boundaries of inclosures 315 and 316 to the north-most point in inclosure 316 thence in a direction generally south-easterly north-easterly and south-easterly following the northern boundary of inclosure 316 to the north-east corner of inclosure 316 thence southerly for a distance of 20 yards along the eastern boundary of inclosure 316 thence easterly to the south-west corner of inclosure 307a thence easterly following the southern boundary of inclosure 307a to the north-west corner of inclosure 241 thence easterly southerly and westerly following the northern eastern and southern boundaries of inclosure 241 to the south-west corner of inclosure 241 thence southerly and easterly following the western and southern boundaries of inclosure 240 for a distance of 171 yards and continuing in a straight line until it meets the southern boundary of inclosure 236 thence easterly following the southern boundary of inclosure 236 to the south-east corner of inclosure 236 thence south-westerly in a straight line for a distance of 120 yards thence south-easterly in a straight line for a distance of 76 yards thence north-easterly in a straight line for a distance of 12 yards thence south-easterly in a straight line for a distance of 44 yards till it meets the northern side of the Motherwell-Stirling road thence in a north-easterly direction along the northern side of the Motherwell-Stirling road for a distance of 96 yards thence south-east in a straight line across the Motherwell-Stirling road to the westmost point of inclosure 227 thence in a south-easterly direction following the southern boundary of inclosures 227 and 203 to the south-east corner thereof thence easterly in a straight line to the south-west corner of inclosure 206a thence in a northerly direction following the western boundary of inclosure 206a to the north-west corner thereof thence easterly in a straight line to the south-west corner of inclosure 211 thence easterly following the southern boundary of inclosure 211 to the south-east corner thereof at a point on the centre line of the stream located there thence in a direction

2ND SCH.
—cont.

generally southerly following the centre line of the stream through inclosures 217 130 217 and 126 and continuing to the centre line of the South Calder Water thence in a direction generally easterly south-easterly and north-easterly following the centre line of the South Calder Water to a point on the eastmost face of the bridge known as Coltness Bridge carrying the Coltness Road over the South Calder Water thence along the east face of the said Coltness Bridge to the north-west corner of inclosure 2270a thence in a south-easterly direction following the western boundary of inclosures 2270a 2270 and 2268 to a point on the northern boundary of the drive through North Branchal Wood thence south-easterly in a straight line to the north-west corner of inclosure 2267 thence southerly following the western boundary of inclosure 2267 for a distance of 67 yards thence in a straight line to the south-western boundary of the said inclosure thence south-easterly and easterly following the south-western and southern boundaries of inclosure 2267 to the westmost corner of inclosure 2266 thence easterly following the southern boundary of inclosure 2266 to the south-east corner thereof thence south-westerly following the western boundary of inclosure 2265 to the westmost point of inclosure 2265 thence south-westerly following the western boundary of inclosure 2263a to the south-west corner thereof thence easterly following the northern boundary of inclosure 2263 to the north-east corner thereof thence southerly following the eastern boundary of inclosure 2263 to the south-east corner thereof thence southerly following the eastern boundary of inclosure 2262a to the point where it meets the northern boundary of inclosure 2262 thence easterly south-easterly and south-westerly following the eastern boundary of inclosure 2262 to the south-east corner thereof thence in a straight line to the north-west corner of inclosure 2259 thence south-westerly westerly and south-westerly following the western boundaries of inclosures 2259 and 2257 to the south-west corner of inclosure 2257 and continuing in a straight line until it meets the northern boundary of inclosure 2255a thence easterly following the northern boundaries of inclosures 2255a and 903 to the eastern side of the entrance to "Northmuir" thence easterly in a straight line until it meets the north-west corner of inclosure 907 thence easterly in a straight line to a point in inclosure 913 which point is 5 yards south of the south boundary of inclosure 2244 at a point on the said south boundary measuring 143 yards south-west from the south-east corner of inclosure 2244 thence south-easterly in a straight line to a point on the east boundary of inclosure 896 which is 6 yards north-west of the south-east corner of inclosure 896 thence south-westerly in a straight line till it meets the south-west side of Woodhall Road at a point 7 yards north-west of the north-east corner of inclosure 859 thence south-westerly in a straight line to a point on the west side of the embankment of the dismantled Wishaw and Newmains branch railway which point is 8 yards south-west of the south-west corner of inclosure 846 thence in a south-westerly direction and following the western boundary of the said dismantled railway for a distance of 156 yards thence south-easterly for a distance of 46 yards thence south-westerly to a point on the burn through Greenhead Moss which point is 100 yards south-east of the point at which the said burn intersects the eastern embankment of the said dismantled

Wishaw and Newmains branch railway thence south-easterly following the said burn to the southmost point on the same in inclosure 792 thence southerly in a straight line for a distance of 200 yards to the south-west embankment of the dismantled railway thence south-easterly and easterly following the south-west and south embankment of the said dismantled railway until it meets the footpath running south-east to north-west past Moss Cottage thence south-easterly following the south-west side of the said footpath to the northmost corner of inclosure 756d thence south-westerly south-easterly and north-easterly following the north-west south-west and south-east boundaries of inclosure 756d thence south-easterly following the south-west side of the access road to Moss Cottage until it meets the west side of the mineral railway embankment to Waterloo Colliery thence south-westerly following the north-west boundary of the said mineral railway and the southern boundaries of inclosures 228 229 and 229a to the southmost point of inclosure 229a thence south-westerly in a straight line for a distance of 15 yards thence north-westerly in a straight line for a distance of 36 yards to a point 22 yards south-west of the north-west corner of inclosure 200 thence northerly in a straight line for a distance of 82 yards to a point in inclosure 201 which point is 10 yards west of the north-east corner of inclosure 201 thence north-westerly in a straight line for a distance of 100 yards till it meets the south-west corner of the dismantled railway in inclosure 230 thence north-westerly following the southern boundary of the dismantled railway and continuation of the same to a point 43 yards south-east of the north-western boundary of inclosure 230 thence south-westerly in a straight line for a distance of 67 yards parallel to and at a distance of 43 yards from the division between inclosures 231 and 230 thence north-westerly in a straight line at right angles to a point on the division between inclosures 230 and 231 which point is 52 yards north-east of the northern boundary of the Wishaw to Carluke road thence south-westerly following the division between inclosures 230 and 231 for a distance of 52 yards until it meets the northern boundary of the Wishaw to Carluke road and continuing across the said road to the south side of the same thence south-easterly following the northern boundaries of inclosures 194 233e 233f and 193 to the north-east corner of inclosure 193 thence south-westerly along the eastern boundaries of inclosures 193 192 and 234 to the south-east corner of inclosure 234 thence south-westerly across the Wishaw deviation railway to the north-east corner of inclosure 235 thence south-westerly following the eastern boundary of inclosure 235 for a distance of 43 yards thence south-easterly for a distance of 6 yards to a point in inclosure 200 thence generally south-south-westerly for a distance of 15 yards to another point in inclosure 200 11 yards distant from the eastern boundary of inclosure 235 thence south-westerly for a distance of 12 yards parallel to the eastern boundary of inclosure 235 thence north-westerly to the north-east corner of inclosure 236 thence south-westerly following the eastern boundaries of inclosures 236 and 336 to the south-east corner of inclosure 336 thence north-westerly along the southern boundaries of inclosures 336 335 333 343 344 385 406 and continuing along the southern boundary of inclosure 407 for a distance of 211 yards thence south-westerly for

2ND SCH.
—cont.

a distance of 10 yards to a point 62 yards south-east from the west corner of inclosure 406 thence north-westerly to the west corner of inclosure 406 thence following the north-east boundary of the said railway to a point where the eastern boundary of inclosure 102 meets the north-eastern boundary of the railway to Stirling thence in a southerly direction in a straight line to the north-west corner of inclosure 78 thence south-easterly in a straight line until it meets the parliamentary county division boundary at the north-east corner of inclosure 76b thence southerly following the said parliamentary county division boundary to and along the eastern boundary of inclosure 76b and the northern and western boundaries of inclosures 540 and 539a and continuing across South Dalziel Road in the line of the west side of the dismantled railway which line is the eastern boundary of inclosure 536 to the south-east corner of inclosure 536 thence westerly along the southern boundaries of inclosures 536 537 and 537a until it meets the Adders Gill parliamentary county division boundary thence southerly and westerly along the said Adders Gill to the centre line of the river Clyde thence generally westerly and north-westerly along the centre line of the river Clyde to the point of commencement.

Note.—The numbers of the inclosures and parliamentary division boundaries referred to are those given on the 1/2500 ordnance survey maps Lanarkshire sheets XII.9 XII.10 XII.11 XII.14 and XII.15 (revision of 1939) XII.16 XVIII.4 and XVIII.8 (revision of 1940) and XVIII.2 XVIII.3 and XVIII.7 (edition of 1912).

THIRD SCHEDULE

Session and chapter	Short title	Extent of repeal
61 & 62 Vict. c. cxxv.	Wishaw Water (Additional Supply) Act 1898.	The whole Act except sections 1 2 3 4 8 9 12 13 14 20 28 30 31 34 and the Fifth Schedule.
62 & 63 Vict. c. lviii.	Wishaw Water Act 1899.	The whole Act.
63 & 64 Vict. c. lxii.	The Motherwell Water (Additional Supply) Act 1900.	The whole Act except sections 1 2 3 4 8 11 12 19 25 26 27 28 and 32.
4 & 5 Geo. 5. c. lxxx.	The Motherwell Water and Sewage Purification Act 1914.	Sections 7 8 and 9.
8 & 9 Geo. 5. c. vi.	Motherwell Water (Supplementary Supply) Order 1918.	Sections 5 6 9 10 14 18 19 20 21 22 29 30 31 32 33 and 34.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Valuation (Scotland) Act 1854	17 & 18 Vict. c. 91.
Public Libraries Consolidation (Scotland) Act 1887	50 & 51 Vict. c. 42.
Burgh Police (Scotland) Act 1892	55 & 56 Vict. c. 55.
Public Health (Scotland) Act 1897	60 & 61 Vict. c. 38.
Wishaw Water (Additional Supply) Act 1898 ...	61 & 62 Vict. c. cxxv.
Wishaw Water Act 1899	62 & 63 Vict. c. lviii.
Motherwell Water (Additional Supply) Act 1900	63 & 64 Vict. c. lxii.
Motherwell Burgh Extension and Sewage Purification Act 1908	1 Edw. 7. c. lix.
House Letting and Rating (Scotland) Act 1911...	1 & 2 Geo. 5. c. 53.
Temperance (Scotland) Act 1913	3 & 4 Geo. 5. c. 33.
Motherwell Water and Sewage Purification Act 1914	4 & 5 Geo. 5. c. lxxx.
Housing &c. Act 1923	13 & 14 Geo. 5. c. 24.
Housing (Financial Provisions) Act 1924 ...	14 & 15 Geo. 5. c. 35.
Housing (Scotland) Act 1925	15 Geo. 5. c. 15.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5. & 1 Edw. 8. c. 52.
Factories Act 1937	1 Edw. 8. & 1 Geo. 6. c. 67.
Motherwell and Wishaw Burgh Order Confirmation Act 1937	1 Edw. 8. & 1 Geo. 6. c. lxxxii.
Local Authorities Loans Act 1945	8 & 9 Geo. 6. c. 18.
Water (Scotland) Act 1946	9 & 10 Geo. 6. c. 42.
Borrowing (Control and Guarantees) Act 1946...	9 & 10 Geo. 6. c. 58.
Local Government (Scotland) Act 1947	10 & 11 Geo. 6. c. 43.
Transport Act 1947	10 & 11 Geo. 6. c. 49.
Town and Country Planning (Scotland) Act 1947	10 & 11 Geo. 6. c. 53.
Electricity Act 1947	10 & 11 Geo. 6. c. 54.
Gas Act 1948	11 & 12 Geo. 6. c. 67.
Water (Scotland) Act 1949	12 13 & 14 Geo. 6. c. 31.
Housing (Scotland) Act 1950	14 Geo. 6. c. 34.
Local Government (Scotland) Act 1951	14 & 15 Geo. 6. c. 15.

PRINTED BY HENRY GEORGE GORDON WELCH, C.B.E.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

Ch. iii

*Motherwell and Wishaw
Burgh Order Confirmation
Act, 1952*

15 & 16 GEO. 6
& 1 ELIZ. 2

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 2s. 0d. net

PRINTED IN GREAT BRITAIN

(77274)